

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

MUHAMMAD RANA, *Complainant*

v.

MICHELLE FRANKLIN, D.B.A. "THE RIGHT MOVE" INC.,
Respondent.

DOCKET NO. 19-03

Served: January 6, 2020

BEFORE: Erin M. WIRTH, *Chief Administrative Law Judge.*

ORDER GRANTING COMPLAINANT'S SECOND MOTION TO COMPEL

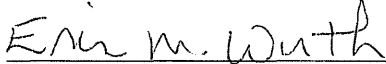
On December 9, 2019, Complainant filed his second motion to compel Respondent to answer the discovery which he served on September 18, 2019. Respondent has not filed an opposition or response to the motion to compel.

The first motion to compel was filed on October 18, 2019. The scheduling order issued on October 30, 2019, denied the motion to compel, required that by November 20, 2019, "Respondent answers discovery and provides initial disclosures," and reminded the parties "that they must comply with discovery requests or promptly file a motion to object to the request. Failure to continue to participate in the proceeding may lead to a default decision."

The motion states that "Respondent has not provided answers to Interrogatories or produced documents requested in the Request for the Production of Documents." Motion at 1. In addition, the parties failed to file a joint status report due on December 20, 2019, and the Respondent failed to participate in the initial status report filed on November 20, 2019.

Respondent has previously been warned that failure to respond to discovery may lead to a default decision. In addition, consistent with Rule 150(b), failure to respond to discovery may lead to a finding that the facts alleged by Complainant are "taken to be established." 46 CFR § 502.150(b).

Accordingly, it is hereby **ORDERED** that Complainant's second motion to compel be **GRANTED**. Respondent must answer the discovery and provide the requested documents by January 15, 2020. Failure to do so may lead to a finding that the answers would have supported Complainant's allegations and may lead to a default decision.


Erin M. Wirth
Chief Administrative Law Judge